

TERMS OF SERVICE — NEXERGY AI

Last Updated: June 2026

PLEASE READ THESE TERMS OF SERVICE CAREFULLY. BY CLICKING "ACCEPT AND CONFIGURE," OR BY ACCESSING OR USING THE NEXERGY AI PLATFORM, THE CUSTOMER AGREES TO BE JURIDICALLY BOUND BY THESE TERMS AND CONDITIONS. IF YOU ARE ACTUATING ON BEHALF OF A COMMERCIAL ENTITY, YOU REPRESENT AND WARRANT THAT YOU HAVE THE FULL LEGAL AUTHORITY TO BIND SUCH ENTITY TO THIS AGREEMENT.

1. DEFINITIONS AND OPERATIONAL FRAMEWORK

Throughout this document, the following capitalized terms shall have the specific meanings detailed below:

- **"Provider" or "Optinex":** Refers to OPTINEX S.A.S. (operating commercially as Nexergy Labs or Nexergy AI), the legal entity owning and operating the software infrastructure.
- **"Customer":** The physical or legal entity contracting access to the platform or executing testing environments across its energetic or industrial infrastructures.
- **"Platform" / "Nexergy SaaS":** The industrial optimization system powered by AI, which includes Agent Orchestration & Skill Layer modules, Cloudflare D1 and R2 integrated data ingestion, digital twins (Digital Twin), and predictive analytics frameworks.
- **"Customer Data":** Any telemetry metrics, operational data streams from refineries or solar plants, database schemas, infrastructure credentials, or configuration variables processed through the software.
- **"Compliance Standards":** The security guidelines under which the platform operates, including ISO 42001 (AI Management System) compliance and operational controls audited under SOC 2 Type II.

2. SERVICES AND OPERATING ENVIRONMENT

2.1. Access Grant

Subject to strict compliance with these terms and the payment of applicable fees (if corresponding to the selected subscription plan), Optinex grants the Customer a non-exclusive, non-transferable, and revocable license to access and use the Nexergy AI platform for its internal commercial operations regarding industrial monitoring and automation.

2.2. Service Levels and Availability

Optinex commits to deploying its maximum technical efforts to maintain platform availability. However, the Customer acknowledges that when operating on top of complex cloud-distributed infrastructures, scheduled disruptions for maintenance or unforeseen network events may occur. Maintenance notices will be sent via the service console as a priority.

3. ACCEPTABLE USE POLICY (AUP)

The Customer agrees to use the platform under ethical standards and industrial cybersecurity guidelines. It is expressly prohibited to:

- 1. Utilize the AI agents or the orchestration infrastructure to perform denial-of-service (DoS/DDoS) attacks against energetic assets or third-party networks.
- 2. Deliberately inject malware or malicious code into the Cloudflare D1 or R2 storage layers connected to the platform.
- 3. Perform reverse engineering on the AI models and the Skill Layer protected by the intellectual property of Optinex SAS.
- 4. Evade token processing quotas or bandwidth limits imposed on free or commercial tiers.

4. SECURITY, GOVERNANCE, AND COMPLIANCE (SOC 2 & ISO 42001)

4.1. Security Commitment

Optinex SAS implements and maintains enterprise-grade technical and organizational security measures designed to protect Customer Data, rigorously aligned with **SOC 2 Type II** trust services criteria and **ISO 42001** artificial intelligence management framework.

4.2. Traceability and Blockchain Immutability

To ensure transparent operations, the platform natively includes full audit trails verified via blockchain mechanisms. All critical autonomous decisions made by the Nexergy AI agent networks are immutably recorded to guarantee explainability before Customer industrial audits.

Compliance Module	Assured Control Mechanism	Associated Certification
Agent Governance	Decision tracking and constant algorithmic explainability.	ISO 42001 AI System
Data Security	Encryption in transit and at rest across Cloudflare D1/R2 storage.	SOC 2 Type II
Log Integrity	Blockchain synchronization for immutable audit trails.	Enterprise Trust

5. CUSTOMER DATA AND INFORMATION RESIDENCY

The Customer retains all property rights and patents over the raw industrial operational data inputted into the platform. The Customer grants Optinex a limited, global license to process, anonymize, and structure such information solely for the purpose of optimizing the AI models assigned to their own Workspace and ensuring digital twin stability.

6. INTELLECTUAL PROPERTY

All rights, titles, and interests over the Nexergy AI platform, including backend code in Node/TypeScript, fronted user interfaces exposed at nexergy.ar, predictive analysis algorithms, logos, trademarks, and automation configurations belong exclusively to OPTINEX S.A.S. No provision in this agreement transfers intellectual property rights to the Customer.

7. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, OPTINEX S.A.S. SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION, LOSS OF PROFITS, LOSS OF OPERATIONAL DATA, INDUSTRIAL PLANT DISRUPTIONS, OR ELECTRICAL INVERTER FAILURES ARISING OUT OF THE USE OR INABILITY TO USE THE AI PLATFORM. OPTINEX'S TOTAL AGGREGATE LIABILITY FOR ANY CLAIMS UNDER THESE TERMS SHALL NOT EXCEED THE TOTAL AMOUNT PAID BY THE CUSTOMER IN THE TWELVE (12) MONTHS PRIOR TO THE EVENT GIVING RISE TO LIABILITY.

8. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the Argentine Republic, without giving effect to any principles of conflicts of law. Any dispute, controversy, or claim arising out of or related to the use of the Nexergy AI platform shall be exclusively submitted to the Ordinary Commercial Courts corresponding to the legal domicile of Optinex S.A.S.